

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased _____

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LEEASHA CARTER,

Plaintiff,

Plaintiff designates
BRONX County as the place of
trial

-against-

The basis of the venue is where
the tort arose

THE CITY OF NEW YORK, DELWYN DAVIS DET. OF
13TH DETECTIVE SQUAD, SHIELD #5739, TAX ID
#932525, CHRISTOPHER MCNEELY P.O. OF 13TH
DETECTIVE SQUAD, SHIELD #23479, TAX ID
#954121, AND OTHER NEW YORK CITY POLICE
OFFICERS UNDER DOCKET #2016NY068189
WHOSE NAMES ARE NOT KNOWN AT THIS TIME
N/H/A JOHN/JANE DOE I-III, AS IT PERTAINS TO
THE INCIDENT THAT AROSE ON NOVEMBER 16,
2016 AND NO OTHER,

SUMMONS

Plaintiff resides at

LEEASHA CARTER
2991 Eighth Ave
New York, NY 10039

Defendants.
-----X

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days
after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered to you within the State
of New York) and, in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
May 15, 2018



JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

DET. DELWYN DAVIS of 13TH DETECTIVE SQUAD

SHIELD #5739, TAX ID #932525

230 E. 21st Street
New York, NY 10010

P.O. CHRISTOPHER MCNEELY of 13TH DETECTIVE SQUAD

SHIELD #23479, TAX ID #954121

230 E. 21st Street
New York, NY 10010

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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-----X
LEEASHA CARTER,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, DELWYN DAVIS DET. OF
13TH DETECTIVE SQUAD, SHIELD #5739, TAX ID
#932525, CHRISTOPHER MCNEELY P.O. OF 13TH
DETECTIVE SQUAD, SHIELD #23479, TAX ID
#954121, AND OTHER NEW YORK CITY POLICE
OFFICERS UNDER DOCKET #2016NY068189 WHOSE
NAMES ARE NOT KNOWN AT THIS TIME N/H/A
JOHN/JANE DOE I-III, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON NOVEMBER 16, 2016
AND NO OTHER,

Defendants.

-----X
LEEASHA CARTER, by her attorneys, JOHN R. DEPAOLA & ASSOCIATES
PLLC, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff LEEASHA CARTER was a resident of
NEW YORK County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a
municipal corporation duly organized and existing by virtue of the laws of
the State of New York.
3. On or about the 10th day of July, 2017 and within ninety (90) days after some
of the claims herein arose, the Plaintiff served a Notice of Claim in writing
sworn to on their behalf upon the Defendant CITY OF NEW YORK, by
delivering a copy thereof in duplicate to the officer designated to receive
such process personally, which Notice of Claim advised the Defendant CITY

OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **DELWYN DAVIS DET. OF 13TH DETECTIVE SQUAD, SHIELD #5739, TAX ID #932525, CHRISTOPHER MCNEELY P.O. OF 13TH DETECTIVE SQUAD, SHIELD #23479, TAX ID #954121, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER DOCKET #2016NY068189 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-III**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. On or about November 16, 2016, at approximately 7:30-8:00 P.M., in the vicinity of 151st and Walton Avenue, County of Bronx, State of New York, the

Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff LEEAISHA CARTER, in an excessive manner about her person, causing her physical pain and/or mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about November 16, 2016, at approximately 7:30-8:00 P.M., in the vicinity of 151st and Walton Avenue, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff LEEAISHA CARTER in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.

11. On or about November 16, 2016, at approximately 7:30-8:00 P.M., in the vicinity of 151st and Walton Avenue, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained her and her liberty and then took her into custody to a police station in the County of NEW YORK and there charged her with the crimes on Docket No. 2016NY068189. The Plaintiff was thereafter held in custody over the course of approximately four (4) days until she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about November 16, 2016, at approximately 7:30-8:00 P.M., in the vicinity of 151st and Walton Avenue, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained her and her liberty and then took her into custody to a police station in the County of NEW YORK and there charged her with the crimes on Docket No. 2016NY068189. The Plaintiff was thereafter held in custody over the course of approximately four (4) days

before she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement..

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Upon information and belief, on or about November 16, 2016 and from that time until the dismissal of charges on or about April 12, 2017, which was a favorable termination for the accused by the Honorable Judge L. Frank, Part F, presiding at NEW YORK County Criminal Court, Defendants **THE CITY OF NEW YORK, DELWYN DAVIS DET. OF 13TH DETECTIVE SQUAD, SHIELD #5739, TAX ID #932525, CHRISTOPHER MCNEELY P.O. OF 13TH DETECTIVE SQUAD, SHIELD #23479, TAX ID #954121, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER DOCKET #2016NY068189 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-III**, an innocent woman without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, NEW YORK County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.
16. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and

instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred. Plaintiff's incriminatory statement to the police were involuntary and coerced in that the police threatened the Plaintiff that she would lose custody of her daughter to ACS if she did not admit the gun was hers and where she got it. If she said it was hers, she would just sign some papers , be released and get her daughter back. In sum and substance, the Plaintiff lied and said the gun was her boyfriend's, Michael Pena, who was in jail on an unrelated charge. Plaintiff at her 50H said the gun was not hers or Michael's and basically said what the cops wanted to hear so she could get her daughter back from ACS and be released from jail, though it did not work out that way.

17. The commencement of these criminal proceedings under Docket No. 2016NY068189 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of her liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend her liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named

Police Officers not the City of New York or officers sued in their official capacity)

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.
20. Defendants **DELWYN DAVIS DET. OF 13TH DETECTIVE SQUAD, SHIELD #5739, TAX ID #932525, CHRISTOPHER MCNEELY P.O. OF 13TH DETECTIVE SQUAD, SHIELD #23479, TAX ID #954121, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER DOCKET #2016NY068189 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-III**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
22. Plaintiff **LEEASHA CARTER** is and at all times relevant herein, a citizen of the United States and a resident of NEW YORK County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
23. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
24. On or about November 16, 2016, the Defendants, armed police, while effectuating the seizure of the Plaintiff **LEEASHA CARTER**, did search,

seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had multiple batteries committed against her, without the Defendants possessing probable cause to do so. **DELWYN DAVIS DET. OF 13TH DETECTIVE SQUAD, SHIELD #5739, TAX ID #932525** was the arresting officer on the instant case. **DELWYN DAVIS DET. OF 13TH DETECTIVE SQUAD, SHIELD #5739, TAX ID #932525** falsely arrested Plaintiff because there was no probable cause to believe Plaintiff committed a crime or violation of the law. The false or incomplete statements made by **DELWYN DAVIS DET. OF 13TH DETECTIVE SQUAD, SHIELD #5739, TAX ID #932525** and **CHRISTOPHER MCNEELY P.O. OF 13TH DETECTIVE SQUAD, SHIELD #23479, TAX ID #954121** led to Plaintiff being maliciously prosecuted. **DELWYN DAVIS DET. OF 13TH DETECTIVE SQUAD, SHIELD #5739, TAX ID #932525** drafted a criminal complaint claiming that Plaintiff was in possession of a loaded gun. Plaintiff was unaware of any gun in her room at the homeless shelter and was not ever present when this gun was found. She was in a shelter in the Bronx when the gun was found at the shelter in New York County. The Plaintiff was coerced by the police to admit the gun was hers if she wanted to be released from jail and/or to see her daughter again, who was given by the police to ACS based on the Plaintiff's arrest. The Plaintiff made a coerced and involuntary

statement because she was expressly told by the police that her daughter would be returned from ACS to her if she admitted the gun was hers and how she got it. For this quid pro quo, the Plaintiff lied and said her boyfriend gave her the gun and she knew it was at her room in the shelter. Her admission is false because she did not want to get arrest and she wanted her daughter back. She was never shown the gun. Plaintiff lost custody of her daughter from the time of the arrest until June 2017. Plaintiff also lost her job due to arrest. Plaintiff is unaware of the names of the officers, aside from the officer already named.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to her person;
 - b. Freedom from battery to her person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from malicious prosecution;
 - f. Freedom from the use of excessive force during the arrest process;
 - g. Freedom from unlawful imprisonment;
 - h. Freedom from loss of her liberty.
 - i. Freedom from being illegally strip-searched with a cavity inspection.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate

indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.
29. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
30. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be

reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

31. THE CITY OF NEW YORK is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
 1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
 2. Coercion cannot be use to secure a false confession.
31. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff's room, commit an assault/battery to her person and coerced her into making a false statement under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

32. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "31" as it set forth at length herein.
33. Defendant CITY OF NEW YORK was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition and/or poor training of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and

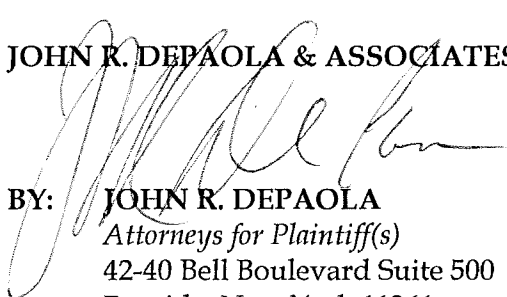
employed by the CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
May 15, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC


BY: **JOHN R. DEPAOLA**
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased _____

-----X
LEEASHA CARTER,

Plaintiff,

-against-

VERIFICATION

THE CITY OF NEW YORK, DELWYN DAVIS DET. OF
13TH DETECTIVE SQUAD, SHIELD #5739, TAX ID
#932525, CHRISTOPHER MCNEELY P.O. OF 13TH
DETECTIVE SQUAD, SHIELD #23479, TAX ID
#954121, AND OTHER NEW YORK CITY POLICE
OFFICERS UNDER DOCKET #2016NY068189
WHOSE NAMES ARE NOT KNOWN AT THIS TIME
N/H/A JOHN/JANE DOE I-III, AS IT PERTAINS TO
THE INCIDENT THAT AROSE ON NOVEMBER 16,
2016 AND NO OTHER,

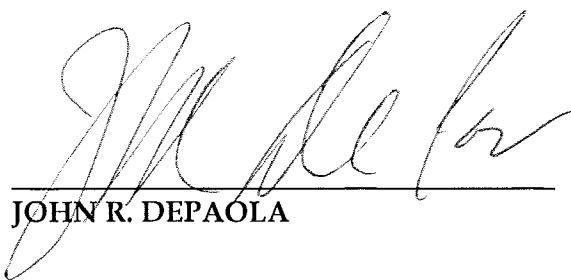
Defendants.

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I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
May 15, 2018



JOHN R. DEPAOLA

Index No. :

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LEEASHA CARTER,

Plaintiff,

-against-

THE CITY OF NEW YORK, DELWYN DAVIS DET. OF 13TH DETECTIVE SQUAD, SHIELD #5739, TAX ID #932525, CHRISTOPHER MCNEELY P.O. OF 13TH DETECTIVE SQUAD, SHIELD #23479, TAX ID #954121, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER DOCKET #2016NY068189 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-III, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON NOVEMBER 11, 2016 AND NO OTHER,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for